



MTN Mobile Money Service Application Form/ MTN Mobile Money Aggregator via API

APPLICANT'S DETAILS or CASH COLLECTION OPERATOR

Service Type: Cash Collection ☐ Cash Collection Aggregator ☐

Name of Organization / Legal Entity (Cash Collection Operator) : _____

Commercial name : _____

Type of organization: Co ☐ LLC ☐ SME ☐ OTHERS ☐

Physical address of organization (Town & Neighbourhood): _____

Tax Payer Number/ Business licence or fixed levy receipt: _____

Name and first names of promoter or legal representative: _____

Email of promoter: _____ Promoter's phone number: _____

Identification of authorized representatives to communicate on behalf of the organization

Name & first name	Type & n° of identification document	Email Address	Telephone n°
1.			
2.			

NATURE OF USE

Subscriber's Primary activity : _____

Description of activity: _____

Number of expected monthly transactions: _____ Estimated monthly value on amount collected in FCFA : _____

LIST OF DOCUMENTS

Registration certificate ☐ Tax payer ☐ Non indebtedness ☐ Articles of Association ☐ Location plan ☐

Bank Account Attestation ☐ ID card of Manager ☐ ID of authorised representatives ☐

Administrative autorisation ☐

OPERATIONAL MODEL

A- Bank transfer by MMC only : ☐

B- Withdrawals via API from the virtual account ☐ Bii : Bank transfer ☐

« By signing this document, we hereby confirm that we have read and fully understood the MTN Mobile Money service terms and conditions. We confirm that the information and supporting documents supplied to MTN Mobile Money are correct and true to the best of our knowledge. We affirm that it is a criminal and civil offence to supply false information under the laws of Cameroon and this can lead to suspension of the services

Date :

authorized signature & stamp :

MTN MOBILE MONEY TERMS AND CONDITIONS

1. Definition of the service

1.1. Cash Collection: "Cash Collection" service allows subscribers to receive payments from customers with MTN Mobile Money accounts or from other payment service providers in the CEMAC region for the sale of their products and services.

1.2. Cash Collection Aggregator: The "Cash Collection Aggregator" service allows the applicant to accept payments from several merchants in a single flow and provide a summary of the aggregated flows as defined in article 4.2.1.

2. Purpose

The applicant wishes to use the Mobile Money Corporation (MMC) collection API (Application Programming Interface) exclusively to access either the "Cash collection" service or "Cash collection Aggregator" as mentioned on the subscription form.

3. Duration and termination

3.1 Duration

Unless terminated as provided below, MMC shall provide the service from the date of signature by the Cash Collection Operator for a period of one (1) year subject to an automatic renewal.

3.2 Termination

3.2.1 Each party may terminate the service after one (01) month notice to the other party. The termination shall take effect at the end of the notice period.

3.2.2 Each Party may terminate the service in the event of violation by the other of its obligations, fifteen days after a formal notice for regularization has remained ineffective.

3.2.3 Each party may terminate the service without notice if the other party is subject to a bankruptcy proceedings.

3.2.4 The termination hereof for any reason whatsoever shall not cause any prejudice to any right or claim existing prior to, or during such termination.

4 Commitment and obligations of the parties

4.1 Obligations of MMC

4.1.1 MMC shall create a virtual account assigned to the Cash Collection Operator.

4.1.2 MMC shall ensure that the accounts operate in accordance with the subscribed service.

4.2 Obligations of the Cash Collection Operator

4.2.1 Obligations related to regulators and compliance. The Cash Collection Operator undertakes to:

- Respect the compliance framework put in place by MMC
- Comply with CEMAC regulation 01/16 of April 11, 2016 on the prevention and repression of the fight against money laundering, financing and proliferation of terrorism in Central Africa, of which the Cash Collection Operator acknowledges having received copy in electronic or physical form
- Accept on-site audits by MMC teams in charge of permanent and periodic inspections or regulators (COBAC, BEAC, ANIF, etc.)
- To not unilaterally modify the service as prescribed in these general conditions or described in this form;

4.2.2 Commercial Obligations:

The Cash Collection Operator accepts to:

- Carry out transactions within the limits set by BEAC and MMC
- Not to initiate an activity and / or an action which could directly or indirectly harm the interests of MMC
- Use the MMC API exclusively for the operations covered by these terms and conditions
- Not develop applications around the API without authorization from MMC
- Not use the API with any equipment, hardware or software that could pose a security threat to MTN Mobile Money systems
- Inform MMC of the pricing conditions concluded with aggregated merchants via the API (Cash Collection Aggregator only)
- Strictly apply MMC's pricing policy
- Not use or allow to use the service provided by MMC for illegal purposes including money laundering, purchase and sale of Bitcoins, currency exchange etc.

- Immediately report to MMC any fraudulent transactions or suspected fraud
- Inform MMC without delay in the event of a malfunction of the MTN Mobile Money system
- Authorize MMC to debit from its account any amount that MMC, after analysis, considers as resulting from fraud
- In the event of requisition by the police or proven fraud, authorize MMC to suspend their account and / or debit from their account all or part of the amount of the claim
- Attend training / information sessions organized by MMC
- Give full access to MMC, their partner bank or any other regulator of the financial sector for audit purposes
- Inform and encourage all their customers to pay via MTN Mobile Money
- Authorize MMC to debit their Mobile Money account to credit their bank accounts communicated to MMC when subscribing to the service
- Authorize MTN to debit from their Mobile Money account any service fees unduly collected without prior notification
- The Cash Collection Operator already gives the authorizations provided for, in this article by the sole signature hereof
- Provide the list of their customers with MTN Cameroon numbers for communication on this new payment method
- Give MMC all the documents required by MMC and necessary for their identification and location
- Provide MMC with a monthly report on the details of their transactions including but not limited to all payment transactions, and for Cash Collector Aggregators; per merchant aggregated their KYC details (Know your customer) with the location (region, town, neighbourhood, street) of the transaction, nature, type of service provided, amount, date and time of the transaction

5 Financial conditions

5.1 The Cash Collection Operator shall be charged a service commission of 1% tax inclusive of all amounts credited to their Mobile Money account (s). This service commission shall be automatically deducted by MMC for each transaction.

5.2 The feature "Possibility of withdrawal by API on virtual accounts" is subject to a minimum balance requirement defined according to the activity of the Cash Collection Operator; the minimum balance shall be communicated to the Cash Collection Operator by MMC by separate act. This minimum balance is subject to change by MMC.

5.3 Commissions are subject to modification by MMC who shall inform the Cash Collection Operator by any written means, thirty (30) days before application of the modifications.

6 Confidential information

Confidential information received within the context of this agreement shall include any technical, political, commercial or scientific information, know-how, trade secrets, processes, machinery, designs, drawings, technical specifications and in whatever form, disclosed to, or accessed by either party during the performance of the service.

The Cash Collection Operator therefore agrees:

- 6.1** Not to utilize, exploit or in any other manner whatsoever use the confidential information disclosed pursuant to the provisions of this Agreement for any purpose other than for this Agreement, without the prior written consent of MMC.
- 6.2** That the unauthorized disclosure of the confidential information to a third party may cause irreparable loss, harm and damage to MMC.
- 6.3** The confidentiality obligation shall remain in force twelve months after the end of the services.

7 Dispute Resolution

- 7.2** Claims are not admissible beyond sixty days after the day of the transaction.
- 7.3** In case of any dispute, claim or controversy between the Parties (hereinafter referred to as the "dispute"), concerning this Agreement, the Parties shall attempt to settle the dispute amicably by direct negotiation. This entails one Party inviting the other Party in writing to meet to resolve the dispute within seven (07) days from the date of the written invitation.
- 7.4** If no agreement can be reached within thirty (30) days through such negotiation, either party may, submit the dispute to the GICAM Arbitration Center (G.A.C) in Douala whose award shall be final and binding.
- 7.5** These general conditions are governed by the law in force in Cameroon

8 Entire Agreement

These terms and conditions contain the entire agreement of the parties with respect to the purpose hereof, and supersedes all prior agreements without prejudice to the rights and claims of MMC, notably debts the Cash Collector owes MMC which shall be due.

9 Addresses

The Parties choose the following addresses to which notices can be submitted, and at which documents in legal proceedings may be served, in connection with this Agreement:

For Mobile Money Corporation:
360 Rue Drouot, Bonamouti Akwa,
P.O. Box 15574 Douala
ATT: The General Manager
E-mail-----

For the Cash Collection Operator:
P.O Box-----
ATT :
E-mail-----

A Party may change their domicile by letter addressed to the other party.

10 No representations

The Cash Collection Operator may not refer to any information that would have influenced him to sign these terms and conditions, unless such information is recorded herein.

11 Amendment

MMC may amend this Agreement. MMC shall inform the Cash Collection Operator by any written means, 48 hours before the implementation of the modifications.

12 Non-waiver

Granting an indulgence to a party hereunder shall not operate as a waiver of any right by the Grantor and shall not preclude the exercise by the Grantor of such right in the future.

13. Cession

The Cash Collection Operator may not assign their rights and obligations to a third party without the prior written consent of MMC. The Cash Collection Operator agrees, however, to continue the execution of this Agreement till the latter expires, if the terms and conditions remain the same in the event that MMC assigns its rights to a third party.

Done on _____

Done on _____

(Signature and stamp for Mobile Money Corporation)

(Signature and stamp for Cash Collection Operator)